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CASE #	CASE NAME	HEARING NAME
CVRI2604182	HASTINGS vs MIRAGE ENDOSCOPY CENTER, LLC	MOTION TO CONSOLIDATE

Tentative Ruling: Grant; no opposition.

5.

CASE #	CASE NAME	HEARING NAME
RIC2002687	BOREL vs SOUTHERN CALIFORNIA GAS COMPANY	MOTION TO TAX COSTS (X3)

Tentative Ruling:

In this consolidated action, various plaintiffs sued multiple defendants, including Southern California Gas Company. On April 21, 32026, the court denied SCGC's motion for summary judgment and denied summary adjudication of the negligence cause of action. The Court granted summary adjudication as to property damage claims of non-owner plaintiffs, as to the negligent infliction of emotional distress cause of action as to those plaintiffs who did not suffer bodily injuries, and as to the public nuisance cause of action for those plaintiffs who did not establish a "special injury" distinct from that suffered by the general public. Judgement was entered on April 24, 2026, against plaintiffs Karen McKinney, Alejandro Melgoza, Sr., Adriana Duran-Melgoza, Elizabeth Melgoza, Kaiden Villanueva, Cathlyn Villanueva, and Deren Villanueva. SCGC filed a memorandum of costs on May 8, 2026, claiming \$65,250.46. The memorandum seeks: (1) filing and motion fees of \$2,261.20; (2) deposition costs of \$53,387.41; (3) court reporter fees of \$1,275.00; (4) subpoena costs of \$4,411.85; and (5) mediation costs of \$3,915.00.

The parties against whom costs are claimed filed a motion to tax on June 9, 2026, just less than two weeks after the deadline. They seek relief under *California Code of Civil Procedure* § 473(b), arguing that there was an internal calendaring error and that this constitutes excusable neglect. They move to strike or to tax costs on several grounds. First, they argue that SCGC is not a prevailing party because it is still a defendant in the case which is set for trial in a few months. Second, they argue that the costs were for defending the entire action and would have been incurred regardless of the causes of action that were summarily adjudicated. Further, they argue that even if some costs are recoverable, SCGC has not adequately supported the costs it claims and that some are non-recoverable, such as deposition costs for percipient witnesses, plaintiffs in related consolidated cases, an expert, who remains designated for trial, the McKinney plaintiffs themselves as percipient witnesses for other plaintiffs' alleged damages, the cost of video recording deposition testimony, which was unnecessary, subpoena costs, and mediation costs.